Delaware Generative AI Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Generative AI in Delaware Education (Delaware Department of Education, Council on Educational Technology; version 1.0, 06/2024)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Printed page numbers match the PDF page numbers. Several short passages are passing mentions and are marked (excerpt). Text transcribed from the page 11 infographic is marked [graphic].

Statement of Purpose (excerpt)

Source: page 5

The comprehensive recommendations address crucial policy areas such as protecting student data, ensuring ethical, equitable, and effective Generative AI use, promoting equity, and enhancing learning through content and curricula that leverage Generative AI technologies.

Understanding Artificial Intelligence (excerpt)

Source: page 7

The educational community must engage in an informed evaluation of AI-driven products, focusing on the mechanics of their operation, the nature of data collection, and the origins of their informational content.

Generative AI Advantages and Cautions (excerpt)

Source: page 10

Cautions involve exacerbating socioeconomic disparities, challenges in academic integrity, privacy concerns, and the need for critical engagement with AI tools to prevent dependency, among others.

AI in K-12 Education Advantages and Cautions: Privacy Concerns

Source: page 11 [graphic]

[graphic] Privacy Concerns: The use of AI in education involves collecting and analyzing vast amounts of personal data from students, raising significant privacy concerns.

Key Policy Areas for Implementation of Generative AI (excerpt)

Source: page 12

The key policy areas provide a framework for integrating Generative AI technologies within academic settings, ensuring privacy protection, ethical use, and equity to enhance learning.

Best Practices for Implementation Strategies: Protecting Student Data

Source: page 13

- Establish strict data privacy and security measures to protect PII, especially student information
- Personally Identifiable Information (PII) should not be manually entered into Generative AI systems
- Adhere to federal and state laws
- Ensure the Generative AI vendor complies with signing Delaware Department of Technology & Information (DTI) Terms and Conditions Governing Cloud Services and Data Usage
- Ensure AI systems are safe, minimizing risks to humans

Best Practices for Implementation Strategies: Enhancing Learning (excerpt)

Source: page 13

- Stay informed and updated with state terms and conditions for data use, privacy, policies, and legislation.

Managing Generative AI Platforms

Source: page 14

New platforms are launching daily. It is important to note that many of these platforms are interfaces between the user and another Generative AI system, such as OpenAI's ChatGPT or Google's Gemini. Districts and charter schools should review each system's terms and conditions and integrations with additional systems before utilizing or adopting them. Steps should be taken to review specific age restrictions, privacy, and student data collection practices within all third-party vendors.

As the landscape of education evolves with the integration of Generative AI, it is essential to recognize that educational platforms and tools will undergo rapid changes. Educators, students, and parents are encouraged to stay informed about their rights, responsibilities, and privacy implications of these technologies.

Evaluation of AI Platforms & AI Within Existing Platforms (excerpt)

Source: page 14

The Emerging Technology Adoption Framework promotes transparency and accountability. This approach mitigates risks like data privacy and biases and fosters Generative AI’s responsible and ethical use in educational environments.

Protecting Student Data with Generative AI Classroom Integration

Source: page 15

Integrating Generative AI into K-12 education presents a transformative opportunity to enhance learning experiences and outcomes. However, it necessitates a meticulous approach to protecting student data, ensuring privacy, and maintaining compliance with legal frameworks such as the Family Educational Rights and Privacy Act (FERPA). School Districts and Charter Schools must prioritize establishing robust data governance policies with precise data collection, storage, access, and sharing protocols. Implementing these tools should be accompanied by rigorous security measures, including encryption and secure authentication, to safeguard against unauthorized access to sensitive information. Furthermore, transparency with students and parents about using Generative AI and the data it generates is crucial. This involves providing accessible information on how data is used to support educational goals and how privacy is protected. By thoughtfully integrating technologies within a framework of strong data protection practices, academic institutions can unlock the potential of Generative AI to personalize learning while simultaneously upholding the trust and confidence of the educational community in the digital age. The Delaware Department of Technology and Information provides terms and conditions for cloud services and student data usage. This documentation needs to be recorded and signed when contracting with vendors.

Promoting Equity with Generative AI Classroom Integration (excerpt)

Source: page 16

This involves addressing potential biases in these systems, ensuring data privacy, and promoting an inclusive learning environment that benefits all students.

Best Practices from AIFWD for Integrating Generative AI in the Classroom (excerpt)

Source: page 17

When selecting a Generative AI tool, carefully review the age restrictions, privacy, and data collection policies before implementing them in the classroom.

Professional Learning Programs: Protecting Student Data

Source: pages 21–22

- Prompt Engineering for Educators: Best practices for designing prompts that maximize teacher capacity while protecting student data and PII.
- Generative AI to Support Pedagogy: Leverage tools for personalized learning, student engagement, and formative assessment to enhance classroom pedagogy and support individual student needs while maintaining student data privacy.
- Connections to Generative AI and Special Education: Training on Generative AI and creating support for exceptional education learners. Discuss goals, protecting student data, privacy dos and don’ts when prompting, and best practices for personalized learning.